

IN THE SUPREME COURT OF BANGLADESH
HIGH COURT DIVISION
(CRIMINAL MISCELLANEOUS JURISDICTION)

Present

Mr. Justice Ashish Ranjan Das
And
Mr. Justice Md. Riaz Uddin Khan

Criminal Miscellaneous Case No. 57588 of 2023

IN THE MATTER OF :

An application under Section 526 of the Code of
Criminal Procedure

-And-

IN THE MATTER OF :

Md. Abu Saleh Sikder @ Saleh Sikder

...Accused- Petitioner

Versus

The State

...Opposite Party

Mr. Md. Ozi Ullah, with

Mr. Md. Abdus Salam, Advocates

..... For Accused-Petitioner

Ms. Fatema Rashid, A.A.G

Mr. Md. Shafiquzzaman, A.A.G. and

Mr. Md. Akber Hossain, A.A.G

..... For the State

Judgment on: 20.02.2024

Md. Riaz Uddin Khan, J:

Upon an application under section 526 of the Code of Criminal Procedure this Rule was issued asking the opposite party State to show cause as to why the Druta Bichar case No. 02 of 2021 arising out of Motijheel Police Station Case No. 23 dated 17.09.2016 corresponding to G.R. No. 284 of 2016 continuing the trial by violating Section 10 of the Druta Bichar Tribunal Ain, 2002, now pending in the Court of Druta Bichar Tribunal No.01, Dhaka should not be transferred to the

original Court of Additional Metropolitan Sessions Judge, 4th Court, Dhaka for trial and/or pass such other or further order or orders as to this Court may seem fit and appropriate.

Motijheel Police Station Case No. 23 dated 17.09.2016 corresponding to G.R. No. 284 of 2016 under sections 302/307/326/34 of the Penal Code was lodged against some unknown persons. However, after investigation charge sheet was submitted against 8(eight) accused persons including the present petitioner Md. Abu Saleh Sikder @ Saleh Sikder under the aforesaid sections of the Penal Code. The case was transmitted to the Court of Additional Metropolitan Sessions Judge, 4th Court, Dhaka for trial. At that stage the Government by a gazette notification transferred the case to the Druta Bichar Tribunal No.01, Dhaka for trial and the tribunal after receiving the case on 16.02.2021 fixed the case for examination of witnesses. On 03.08.2023 while the trial was in progress, the petitioner filed an application before the tribunal praying for transfer of the case to the original Court wherefrom the case was transferred to the tribunal as more than 135 working days has been elapsed but the tribunal could not conclude the trial as mandated in section 10 of the Druta Bichar Tribunal Ain, 2002. The tribunal rejected the application by order dated 03.08.2023.

Mr. Md. Ozi Ullah along with Mr. Md. Abdus Salam, the learned Advocate appearing for the accused-petitioner submits that the Druta Bichar Tribunal after receiving the case record from the Court of Additional Metropolitan Sessions Judge, 4th Court, Dhaka started its function on 16.02.2021 and till 03.08.2023 more than 2 (two) years 04 (four) months and 17(seventeen) days have been passed which was much more than 135 working days. He then submits that according to sub-section 4 of section 10 of the Druta Bichar Tribunal Ain, as the tribunal could not conclude the trial within 135 working days it should send the case back to the original Court wherefrom the case was transferred to the tribunal. The learned Advocate further submits that this is a mandatory provision of law which the tribunal must follow. In support of his submission the learned Advocate placed the decision in the case of Md. Shohrab Vs Bangladesh and others reported in (2021) 22 ALR HCD page-204.

On the other hand the learned Assistant Attorney General (AAG) Mr. Md. Shafiquzzaman, appearing for the State submits that the provision of section 10(4) of the Druta Bihar Tribunal Ain is not a mandatory provision rather directory. The learned AAG further submits that at the time of issuance of Rule there was no order of stay for which the learned Judge of the Druta Bihar Tribunal continued the trial of the

case but yet could not conclude the trial. The learned AAG finally submits that since the provision as contemplated in section 10(4 and 5) of the Ain is not mandatory as decided by the Apex Court of the country this case should not be transferred from Druta Bichar Tribunal to the original Court wherefrom it was transferred. In this regard he referred the case of S.M. Mozzamel Hoque Talukder Vs The State reported in 68 DLR (AD) 370.

We have heard the submissions of both the parties, perused the application along with the annexures. The Rule was issued on 09.10.2023 and though there was no order of stay, the Druta Bichar Tribunal till today could not conclude the trial as mandated by the Druta Bichar Tribunal Ain, 2002. From the preamble read with section 6 of the Ain it appears that the legislature enacted this law for speedy trial of some cases for public interest, such as the case of Murder, Rape, Firearms, explosive substances and dangerous Drugs (Madok Drabya). For the purpose, the legislature laid down some special procedure to conclude the trial speedily within the time specified by the Ain. Section 10 of the Ain reads as follows-

“মামলা নিষ্পত্তির মেয়াদ- ১০। (১) দ্রুত বিচার ট্রাইব্যুনালে স্থানান্তরিত কোন মামলা স্থানান্তরের তারিখ হইতে নব্বই কার্য দিবসের মধ্যে নিষ্পত্তি করিতে হইবে।

(২) কোন অনিবার্য কারণে উক্ত মেয়াদের মধ্যে কোন মামলা নিষ্পত্তি করা সম্ভব না হইলে, দ্রুত বিচার ট্রাইব্যুনাল কারণ লিপিবদ্ধ করিয়া অতিরিক্ত ত্রিশ কার্য দিবসের মধ্যে মামলাটি নিষ্পত্তি করিতে পারিবে এবং ততসম্পর্কে সুপ্রীম কোর্টকে লিখিতভাবে অবহিত করিবে, যাহার একটি অনুলিপি সরকারের নিকট প্রেরণ করিতে হইবে।

(৩) উপ-ধারা (২) এ উল্লিখিত বর্ধিত সময়ের মধ্যেও যদি যুক্তিসঙ্গত কোন কারণে কোন মামলা নিষ্পত্তি করা সম্ভব না হয়, তাহা হইলে ট্রাইব্যুনাল উহার কারণ লিপিবদ্ধ করিয়া মামলাটি নিষ্পত্তির জন্য সর্বশেষ আরো পনের কার্য দিবস সময় নিতে পারিবে এবং এইরূপ সময় বর্ধিতকরণ সম্পর্কে সুপ্রীম কোর্টকে লিখিতভাবে অবহিত করিবে, যাহার একটি অনুলিপি সরকারের নিকট প্রেরণ করিতে হইবে।

(৪) কোন ক্ষেত্রে উপ-ধারা (৩) এ উল্লিখিত সর্বশেষ বর্ধিত মেয়াদের মধ্যেও যদি কোন মামলা নিষ্পত্তি করা সম্ভব না হয়, তাহা হইলে মামলাটি যে আদালত হইতে দ্রুত বিচার ট্রাইব্যুনালে স্থানান্তরিত করা হইয়াছিল সেই আদালতে উক্ত ট্রাইব্যুনাল কারণ লিপিবদ্ধ করতঃ উহা ফেরত পাঠাইবে এবং উক্তরূপে ফেরত পাঠানো সম্পর্কে কারণ লিপিবদ্ধ করতঃ সুপ্রীম কোর্টকে লিখিতভাবে অবহিত করিবে, যাহার একটি অনুলিপি সরকারের নিকট প্রেরণ করিতে হইবে।

(৫) উপ-ধারা (৪) এর অধীন কোন মামলা কোন আদালতে ফেরত আসিলে সেই মামলাটির বিচারকার্য উক্ত আদালতে বিচারাধীন অন্যান্য সকল মামলার উপর প্রাধান্য পাইবে এবং যে পর্যায়ে মামলাটি ফেরত আসিয়াছে সেই পর্যায় হইতে উহার বিচারকার্য পরিচালনা করা হইবে, যেন উক্ত আদালতে মামলাটি ঐ পর্যায়ে বিচারাধীন ছিল এবং ইহা কখনও স্থানান্তরিত হয় নাই: তবে শর্ত থাকে যে, উক্ত আদালতে উক্ত সময়ে যদি অন্য কোন মামলার শুনানী চলিতে থাকে, তবে ঐ মামলার শুনানী শেষ হইবার পর ফেরতপ্রাপ্ত মামলাটির শুনানী শুরু করিতে হইবে এবং ইহার শুনানী শুরু করিবার পর ইহা শেষ না হওয়া পর্যন্ত একটানা চলিতে থাকিবে এবং অনিবার্য কোন কারণ ব্যতীত, যাহা লিপিবদ্ধ করিতে হইবে, ইহার শুনানী মূলতবী করা যাইবে না।”

It appears from section 10 of the Ain that the legislature fixed specific number of working

days within which the tribunal is to complete the trial. Sub-section 1-3 clearly states that the tribunal should complete the trial within $90+30+15=135$ working days and if the tribunal fails to conclude the trial it has to state the reason for its failure to conclude the trial within the stipulated time and to apprise the Supreme Court in writing, a copy of which has to be submitted to the Government. Sub-section 4 of section 10 states that if the tribunal fails to conclude the trial within the specified time, the tribunal shall send the case back to the original Court wherefrom it received the case record and also state the reason for doing so and apprise the Supreme Court stating the reason for sending the case back in writing, a copy of which has to be submitted to the Government. Sub-section 5 states that after receiving the case from the Druta Bichar Tribunal the original Court shall give preference of the case over all other cases pending before it, provided that if the Court is in the midst of hearing of any case after concluding that case the case received back from the tribunal has to be tried without any break and the case should not be adjourned other than an unavoidable circumstances of which the reason is to be mentioned. Section 12 of the Ain mandates that the tribunal shall try the case without any break and shall not adjourn the case unless it is necessary and in that case

adjournment shall not be more than 3 (three) working days. Provided that if such adjournments make the trial impossible to conclude within specified time as mentioned in section 10, then such adjournment shall not be allowed. Section 15 of the Ain provides for accountability of the person(s) who is/are responsible for failure to conclude the trial as mandated under section 10(3) of the Ain. From reading the Ain as a whole it is crystal clear that if the provisions of the Ain are not followed, then the purpose of the Ain would be frustrated which cannot be the intention of the legislature. There is a difference between the mere directory provision and the provision of section 10(4) of the Druta Bichr Tribunal Ain. The former has no consequence or to do anything while in the later case the tribunal is to send the case back to the original court wherefrom the case was transferred to it. For clear understanding of the difference between these two types let us quote section 339C of the Code of Criminal Procedure which is as under:

339C. (1) A Magistrate shall conclude the trial of a case within one hundred and eighty days from the date on which the case is received by him for trial.

(2) A Sessions Judge, an Additional Sessions Judge or An Assistant Judge shall conclude the trial of a case within three hundred and sixty days

from the date on which the case is received by him for trial.

(2A) Notwithstanding anything contained in sub-section (1) or sub-section (2), where a person is accused in several cases and such cases are brought for trial before a Magistrate or a Court of Session, the time limit specified in sub-section (1) or sub-section (2) for the trial of such cases shall run consecutively.

(2B) Notwithstanding the transfer of a case from one Court to another Court, the time specified in sub-section (1) or sub-section (2) shall be the time for concluding the trial of a case.

(3) Omitted

(4) If a trial cannot be concluded within the specified time, the accused in the case, if he is accused of a non-bailable offence, may be released on bail to the satisfaction of the Court, unless for reasons to be recorded in writing, the Court otherwise directs.

(5) Nothing in this section shall apply to the trial of a case under section 400 and 401 of the Penal Code (Act XLV of 1860), or to the trial of a case to which the provisions of Chapter XXXIV apply.

(6) In this section, in determining the time for the purpose of a trial,-

(a) omitted

(b) the days spent on account of the absconsion of an accused after his release on bail, if any, shall not be counted.

From reading of the above provision we also find specified period to conclude the trial but it is clear that this section 339C of the Code of Criminal Procedure is a mere directory provision and not mandatory as the Court if cannot conclude the trial within the specified period has nothing to do but to continue the trial, though the Court may release the accused on bail. On the other hand if the Druto Bichar Tribunal fails to conclude the trial within specified period the Tribunal is to send back the case wherefrom it received the same.

Be that as it may, our Appellate Division in the reported case of S.M. Mozzamel Hoque Talukder reported in 68 DLR (supra) held that-

“Since no consequence has been provided for in section 10(4)(5) the trial by the same tribunal even after the expiry of 135 working days will not be illegal or without jurisdiction.”

We are in respectful agreement with the above view expressed by the apex Court of the

country that the trial if held after the expiry of stipulated time will not be illegal or without jurisdiction. Nonetheless, it does not in any way mean that the tribunal is not obliged to follow the provision of law enacted by the parliament so far it is in the statute unless declared unconstitutional by the Supreme Court. However, considering the said case decided by the Appellate Division the High Court Division in the case of Md. Shohrab (supra) observed as under-

“4.6 Therefore, it cannot be said that failure of completion of trial within 135 days is without any consequence provided by law. Rather, the failure of completion of trial within 135 working days has clear consequences as provided by law, which are as follows:

- 1) The case has to be returned to the original court.
- 2) Upon returning the case, the Tribunal is required to send to the Supreme Court in writing assigning reason for the failure of completion trial of the case within the said 135 days.
- 3) The copy of that report has also to be sent to the government.
- 4) Not only that, there are some other consequences of failure of

the Tribunal to complete the trial within the said period, they are:

- (a) the case returned to the original Court shall get priority over other cases in that original Court,
- (b) that case has to be tried by the original Court from the stage it has been returned as if it was never transferred to the tribunal and
- (c) the said case before the original Court has to be tried without any adjournment except for unavoidable reason.

4.7 Therefore, it appears that the failure to complete the trial within 135 days has clear consequences provided by law. Therefore, as repeatedly held by our Appellate Division and High Court Division in various cases, this requirement cannot be held to be a directory requirement. Rather, it is a mandatory requirement of law.”

Against the aforesaid judgment of the High Court Division the Government filed Civil Petition for Leave to Appeal No. 670 of 2022 and

the Appellate Division by its order dated 09.11.2023 disposed of the Civil Petition without setting aside the decision and conclusion of the judgment passed by the High Court Division in concluding paragraph No. 4.20. Nevertheless, the Honorable Appellate Division was pleased to expunge some findings and observations made therein from paragraph Nos. 4.8 to 4.13 and 4.19.

There is no doubt that the decision passed in the S.M. Mozzamel Hoque Talukder (supra) case by the Honorable Appellate Division is binding upon this division and all Courts subordinate to the Supreme Court as per Article 111 of the Constitution. Since the Appellate Division held in the above mentioned case that the provision of section 10 (4 and 5) having no consequence is not mandatory we are bound by that decision. We are with the respectful agreement of the decision of the Appellate Division that the provision is not mandatory but directory. However, nowhere in any decision it is held that directory provision is not to be followed. In the present case, it was brought into the notice of the tribunal by filing application by the accused that more than 135 working days have elapsed for which the tribunal is required to send the case back to the Court wherefrom it was transferred to it. The spirit of the Druta Bichar Tribunal Ain, 2002 is speedy trial of some specified cases of public importance as mandated by our Constitution under

Article 35(3) and if the tribunal do not follow the provisions specified in the Ain then this provisions become nugatory. The legislature in their wisdom incorporated such a provision which is *intra vires*, we do not understand why the tribunal shall not follow that provision. In such view of the matter, we are of the opinion that the sub-section 4 and 5 of section 10 is not mandatory in the sense that if the tribunal without noticing the working days concludes the trial beyond the 135 working days then the trial or the judgment passed by the tribunal will not be illegal or without jurisdiction. But when there is a time to send back the case to the original court and it was brought into the notice of the tribunal by filing application, the tribunal is obliged to follow the law enacted by the legislature and not declared *ultra vires* the constitution by the Supreme Court. So long this provision is in the statute every Court of the land must follow.

From the information provided by the learned AAG, it appears that the trial has not been concluded and substantial numbers of witnesses are to be examined yet. The tribunal started this case on 16.02.2021 and in the mean time, more than 3(three) years have elapsed though the Ain clearly mandates that the tribunal has to conclude the trial within 135 working days. Since the law specifically mandates that the tribunal

is to send back the case to the original Court wherefrom it received the case we are of the opinion that this provision is to be followed unless in some exceptional circumstances where the case is in the last stage such as for argument or judgment.

In the facts and circumstances of the case and the provisions of law discussed above, we find substance in the case for which we are constrained to interfere.

In the result the Rule is made **absolute**.

The Druta Bichar Tribunal No.1, Dhaka is directed to send the Druta Bichar Case No. 02 of 2021 arising out of Motijheel Police Station Case No. 23 dated 17.09.2016 corresponding to G.R. Case No. 284 of 2016 back to the original Court of learned Additional Metropolitan Sessions Judge, 4th Court, Dhaka, within 3(three) working days from receipt of this judgment and order without fail, if in the mean time, the trial is not concluded.

Communicate the judgment and order at once.

Ashish Ranjan Das, J:

I agree.